Fourteenth Amendment a part of our Constitution. For as MR. JUSTICE BLACK pointed out in his dissent in *Connecticut General Co.* v. *Johnson,* 303 U. S. 77, 87, the submission of the Amendment to the people was on the basis that it protected human beings. There was no suggestion in its submission that it was designed to put negroes and corporations into one class and so dilute the police power of the States over corporate affairs. Arthur Twining Hadley once wrote that "The Fourteenth Amendment was framed to protect the negroes from oppression by the whites, not to protect corporations from oppression by the legislature. It is doubtful whether a single one of the members of Congress who voted for it had any idea that it would touch the question of corporate regulation at all." [1]

Both Mr. Justice Woods in *Insurance Co.* v. *New Orleans, supra,* p. 88, and MR. JUSTICE BLACK in his dissent in *Connecticut General Co.* v. *Johnson, supra,* pp. 88–89, have shown how strained a construction it is of the Fourteenth Amendment so to hold. Section 1 of the Amendment provides:

> "All *persons* born or naturalized in the United States, and subject to the jurisdiction thereof, are *citizens* of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of *citizens* of the United States; nor shall any State deprive any *person* of life, liberty, or property, without

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[1] The Constitutional Position of Property in America, 64 Independent 834, 836 (1908). He went on to say that the *Dartmouth College* case (4 Wheat. 518) and the construction given the Fourteenth Amendment in the *Santa Clara* case "have had the effect of placing the modern industrial corporation in an almost impregnable constitutional position." *Id.,* p. 836.

As to whether the framers of the Amendment may have had such an undisclosed purpose, see Graham, The "Conspiracy Theory" of the Fourteenth Amendment, 47 Yale L. J. 371.